

		purported error of law, where moving party did not present any new or different facts in support of its motion].) In their Motion and Reply, Defendants contend the Court has the inherent power to reevaluate and correct its own rulings. They further maintain the Court should do so because the Court's ultimate ruling was substantially inconsistent with statements the Court made at the hearing. Section 1008 does "not limit a <i>court's</i> ability to reconsider its previous interim orders on its own motion, as long as it gives the parties notice that it may do so and a reasonable opportunity to litigate the question." (<i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1096-1097; accord, <i>New York Times Co. v. Superior Court</i> (2005) 135 Cal.App.4th 206, 211 and <i>Cox v. Bonni</i> (2018) 30 Cal.App.5th 287, 312.) "[I]t should not matter whether the 'judge has an unprovoked flash of understanding in the middle of the night' [citation] or acts in response to a party's suggestion. If a court believes one of its prior interim orders was erroneous, it should be able to correct that error no matter how it came to acquire that belief." (<i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1108; accord, <i>Boschetti v. Pacific Bay Investments Inc.</i> (2019) 32 Cal.App.5th 1059, 1070.) "Trial courts always have discretion to revisit interim orders in service of the paramount goal of fair and accurate decisionmaking." (<i>Minick v. City of Petaluma</i> (2016) 3 Cal.App.5th 15, 34.) However, the Court did not err when it granted Plaintiff's motion for attorneys' fees. While the Court expressed its frustration with Plaintiff's inability, or refusal, to apportion his attorney fees, its ultimate ruling was based on its review and analysis of the billing records, and its personal experience and knowledge regarding the reasonable hourly rates for Orange County. Given this analysis, the Court reduced both the hourly rates, and the number of hours expended, by Plaintiff's counsel. This resulted in the reduction of attorney fees, from the requested amount of \$1,443,140.35, to the awarded amount of \$647,684.00. Defendants' Motion is denied. Plaintiff to give notice.
7	Paquette v. The Hertz Corporation	<u>Demurrer to FAC</u> Defendant The Hertz Corporation demurs to the First Amended Complaint of Plaintiff Robert Paquette's Complaint. For the following reasons, the demurrer is OVERRULED. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be